

25STCV20989 25STCV20989

County: los-angeles
Division: Civil Law and Motion
Department: 506
Hearing date: 2026-07-07
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Case Number: 25STCV20989 Hearing Date: July 7, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

ERIC GREEN,

Plaintiff,

vs.

LOS ANGELES COUNTY SHERIFF, et al.,

Defendants.

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CASE NO.: 25STCV20989

[TENTATIVE] ORDER DENYING MOTION FOR LEAVE
TO FILE THIRD AMENDED COMPLAINT

Dept. 506

8:30 a.m.

July 7, 2026

On

July 16, 2025, Plaintiff Eric Green filed this action. On March 5, 2026, he filed a first amended complaint, and on May 15, 2026, he filed a second amended complaint.

On

June 12, 2026, Plaintiff filed a motion for leave to file a third amended complaint ("TAC").

The

Court may, in its discretion and after notice to the adverse party, allow an amendment to any pleading. (Code Civ. Proc., § 473, subd. (a)(1).) A motion to amend a pleading must include a copy of the proposed amendment or amended pleading which must be serially numbered to differentiate it from previous pleadings or amendments and must state what allegations in the previous pleading are proposed to be deleted or added, if any, and where, by page, paragraph, and line number, the allegations are located. (California Rules of Court, rule 3.1324(a).) The motion shall also be accompanied by a declaration attesting to the effect of the amendment, why the amendment

is necessary and proper, when the facts giving rise to the amended allegations were discovered, and why the request for amendment was not made earlier. (California Rules of Court, rule 3.1324(b).) “[E]ven if a good amendment is proposed in proper form, unwarranted delay in presenting it may—of itself—be a valid reason for denial.” (Record v. Reason (1999) 73 Cal.App.4th 472, 486, quoting Roemer v. Retail Credit Co. (1975) 44 Cal.App.3d 926, 939-940.)

Plaintiff

provides a copy of the proposed TAC, which is not in proper form. When papers are not filed electronically, only one side of each page may be used. (California Rules of Court, rule 2.102.) There are no page numbers or footers. (California Rules of Court, rules 2.109, 2.110.) There are no separate causes of action. (California Rules of Court, rule 2.112.)

The

proposed amendments include Plaintiff's Government Claim form; “a pre-text of [Plaintiff's] mental health issue as discrimination and the conduct of the fabrication of [Plaintiff] impersonating a police officer by Myra Svoboda, Erin Hall and Andrew Gulcher”; and Plaintiff's request for “discovery of [his] complete background file, email, notes from defense counsel Katherine Tremblay.”

(Motion at p. 1.) Amendments also include adding “DEFENDANT ADRIENNE ARELLANO EMPLOYEE OF THE COUNTY OF LOS ANGELES AS SHE IS CUPABLE [sic] AND A PARTY TO THE ALLEGATIONS OF THE COMPLAINT BASED ON RECENT INFORMATION RECEIVED IN THE FORM OF A SWORN DECLARATION”; alleging that Defendants Erin Hall, Andrew Gulcher, and Myra Svoboda do not have government immunity; and including “California Department of Insurance, Erin Hall, Andrew Gulcher, Myra Svoboda and Adrienne Arellano and County of Los Angeles, aiding and abetting and working in connection to a pretext [sic] of the allegation of a crime to discrimination of a mental health issue.” (Memo. P&A at pp. 1-2.)

Plaintiff

does not provide the required declaration to clearly explain the effect of the amendment and why the amendment is necessary and proper.

Plaintiff also does not explain when the facts giving rise to the amended allegations were discovered and why the request for amendment was not made earlier. Plaintiff states that he “ONLY BECAME AWARE OF THE ADDITIONAL FACTS JULY 16, 2026.”—a date in the future. (Motion at p. 2.)

Accordingly,
the Motion for Leave to Amend is DENIED.

The
duplicate Hearing on Motion for Leave to Amend the Second Amended Complaint scheduled
for July 21, 2026 is ADVANCED to this date and VACATED.

Moving
party to give notice.

Parties
who intend to submit on this tentative must send an email to the Court at
indicating intention to submit. If all parties
in the case submit on the tentative ruling, no appearances before the Court are
required unless a companion hearing (for example, a Case Management Conference)
is also on calendar.

Dated this 7th day of July 2026

Hon. Thomas D. Long

Judge of the Superior
Court